

26STCV08041 26STCV08041

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Case Number: 26STCV08041 Hearing Date: September 2, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: September
2, 2026

CASE NAME: Los

Angeles County Metropolitan Transportation Authority v. Glendale Metals &
Recycling, Inc., et al.

CASE NO.: 26STCV08041

MOTION

FOR PREJUDGMENT POSSESSION

MOVING PARTY: Plaintiff

Los Angeles County Metropolitan Transportation Authority

RESPONDING PARTY(S): Defendants Glendale Metals &
Recycling, Inc. and American Reclamation, Inc.; Joinder by Defendants U.S.
Specialty Insurance Company and American Contractors Indemnity Company

REQUESTED RELIEF:

1. An

order for prejudgment possession of certain real

property interests that are contained within the real property located at 5487 and 5475 San Fernando Road West, and 4510 Doran Street, Los Angeles, California 90039, and is identified by the Los Angeles County Assessor's Parcel Number 5593-005-001, 5593-005-002, 5593-005-015, 5593-005-036.

TENTATIVE RULING:

Motion
for Order for Prejudgment Possession is GRANTED;

Plaintiff is
authorized to take possession of the Subject Property thirty (30)
days after service of this Order, as required by Code of Civil Procedure
Section 1255.450(b).

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On March 12, 2026, Plaintiff Los Angeles County Metropolitan
Transportation Authority (Plaintiff) filed a complaint in eminent domain
against Defendants Glendale Metals & Recycling, Inc. (Glendale Metals),
United Business Bank (UBB), Stewart Title of California, Inc. (Stewart Title),
American Contractors Indemnity Company (ACIC), U.S. Specialty Insurance Company
(USSIC), and all persons unknown claiming an interest in the property
(sometimes collectively Defendants).

This eminent domain complaint concerns properties located at
5487 San Fernando Road West, 5475 San Fernando Road West, and 4510 Doran Street
all in Los Angeles, California 90039. Plaintiff seeks to acquire a 344
square-foot fee simple acquisition, an 11 square-foot permanent roadway
easement, and one 44-month temporary construction easement over the properties.

On March 30, 2026, Plaintiff filed a fictitious name
amendment to the complaint adding Los Angeles County Treasurer and Tax
Collector as DOE 1.

On April 1, 2026, Plaintiff filed fictitious name amendments
to the complaint adding Trustors Security Service as DOE 2, Stephen M. Baker as
DOE 7, American Reclamation, Inc. as DOE 9, BayCom Corp. as successor in
interest to Pacific Enterprise Bank as DOE 8, South Coast Fibers, Inc. as DOE
4, Gasparian, Inc. as DOE 3, Chicago Title Company as DOE 6, and Pacific

Enterprise Bank as DOE 5.

On April 2, 2026, Plaintiff filed fictitious name amendments to the complaint adding K. L. Fleming as DOE 10, Beverly Building Material Company as DOE 17, R. W. Gripe as DOE 16, Bernice Viola Olson, as DOE 15, Frank Oliver Olson as DOE 14, Philip Magnus Alden as DOE 12, Roy M. Taylor as DOE 11, Chester C. Smith as DOE 18, and Ella Seran Smith as DOE 19.

On April 14, 2026, ACIC and USSIC filed an answer.

On April 14, 2026, Plaintiff filed a fictitious name amendment to the complaint adding Titus Maintenance & Installation Services, Inc. as DOE 20.

On April 20, 2026, Plaintiff filed a fictitious name amendment to the complaint adding Chester Smith, Jr. as the heir and devisee of Chester C. Smith as DOE 21.

On April 20, 2026, Glendale Metals and American Reclamation, Inc. (DOE 9) filed an answer.

On April 30, 2026, Defendant Los Angeles County Treasurer and Tax Collector (DOE 1) filed a disclaimer.

On May 1, 2026, Plaintiff filed a disclaimer.

On May 6, 2026, Defendant Chicago Title Company (DOE 6) filed a disclaimer.

On May 19, 2026, Plaintiff filed a notice of deposit.

On May 19, 2026, Plaintiff filed the instant motion to prejudgment possession. On June 30, 2026, Glendale Metals and American Reclamation (collectively Glendale Metals) filed an opposition. Defendants ACIC and USSIC filed joinders the same date. On August 18, 2026, Plaintiff filed a reply.

LEGAL STANDARD:

Under the California Constitution, “[p]rivate property may

be taken or damaged for a public use and only when just compensation, ascertained by a jury unless waived, has first been paid to, or into court for, the owner.” (Cal. Const., art. I, § 19(a).) However, the “Legislature may provide for possession by the condemnor following commencement of eminent domain proceedings upon deposit in court and prompt release to the owner of money determined by the court to be the probable amount of just compensation.” (Ibid.)

;

A plaintiff may move for an order for possession at the time of filing the complaint or any time prior to entry of judgment, demonstrating the plaintiff is entitled to take a property by eminent domain and has deposited an amount that satisfies the requirements of Article 1, Chapter 6, Title 7, Part 3, of the Code of Civil Procedure. (Code Civ. Proc., § 1255.410(a).)

Code of Civ. Proc.

(CCP) section 1255.410 provides a mechanism by which an eminent domain plaintiff can acquire possession of a property before entry of judgment. “At the time of filing the complaint or at any time after filing the complaint and prior to entry of judgment, the plaintiff may move the court for an order for possession.” (CCP § 1255.410(a).) “The motion shall describe the property of which the plaintiff is seeking to take possession . . . and shall state the date after which the plaintiff is seeking to take possession of the property.” (Ibid.)

“Not later than 30 days after service of the plaintiff’s motion seeking to take possession of the property, any defendant or occupant of the property may oppose the motion in writing by serving the plaintiff and filing with the court the opposition.” (CCP § 1255.410(c).) “If the written opposition asserts a hardship, it shall be supported by a declaration signed under penalty of perjury stating facts supporting the hardship.” (Ibid.)

If the motion is timely opposed, the court may make an order for possession after finding:

(A) The plaintiff is entitled to take the property by eminent domain.

(B) The plaintiff has

deposited pursuant to Article 1 (commencing with Section 1255.010) an amount that satisfies the requirements of that article.

(C) There is an overriding need for the plaintiff to possess the property prior to the issuance of final judgment in the case, and the plaintiff will suffer a substantial hardship if the application for possession is denied or limited.

(D) The hardship that the plaintiff will suffer if possession is denied or limited outweighs any hardship on the defendant or occupant that would be caused by the granting of the order of possession.

(CCP § 1255.410(d)(2).)

ANALYSIS:

Request for Judicial Notice

The court GRANTS Plaintiff's request for judicial notices in full. (Evid. Code § 452(c), (h); See *Kalnoki v. First American Trustee Servicing Solutions, LLC* (2017) 8 Cal.App.5th 23,37.) However, the court only takes judicial notice of the foregoing documents only as to "the existence, content and authenticity of public records and other specified documents"; it does not take judicial notice of the truth of the factual matters asserted in those documents. (*Dominguez v. Bonta* (2022) 87 Cal. App. 5th 389, 400.)

Prejudgment Possession

Plaintiff contends they need possession by September 30, 2026 to obtain right of way certificates, timely commence construction, utilize state grant funds before they expire in June 2027, and obtain matching federal funding. They add that the Project will provide for safer travel at this dangerous at-grade rail crossing.

Glendale Metals argues prejudgment possession is not appropriate because: (1) Plaintiff failed to serve Ray's Auto Repair & Body – a longstanding tenant at the Property;[1]

(2) there is no evidence supporting temporary urgency for prejudgment possession; (3) the balance of hardships weigh in their favor; and (4) the deposit is insufficient. Joining Defendants wholesale adopted these arguments.

Plaintiff replies that there is no evidence (let alone admissible evidence) supporting these arguments so the court should disregard them and that the deposit is reasonable at this stage.

Entitlement to Taking by Eminent Domain

;

A party is entitled to exercise the power of eminent domain if it is authorized by statute to do so, and if the proposed project for which the property is sought meets certain statutory requirements. (See CCP §§ 1240.020, 1240.030.) All of the following statutory requirements must be established: (a) The public interest and necessity require the project. (b) The project is planned or located in the manner that will be most compatible with the greatest public good and the least private injury. (c) The property sought to be acquired is necessary for the project." (CCP § 1240.030.) "Except as otherwise provided by statute, a resolution of necessity adopted by the governing body of the public entity pursuant to this article conclusively establishes the matters referred to in Section 1240.030." (CCP § 1245.250(a).);

Here, Plaintiff has authority to exercise eminent domain powers. First, this element is uncontested. (Opp. 8:23-27.) Second, Plaintiff's authority is authorized by statute. (Pub. Util. Code §§ 30503, 30600, 31000 [merger of Plaintiff into Southern California Rapid Transit District].) Third, Plaintiff provided a Resolution of Necessity authorizing it to commence eminent domain proceedings. (Compl., Exhibit 2.)

Accordingly, this requirement is met.

Deposit of Satisfactory Amount

CCP § 1255.010(a) states that a plaintiff may deposit the probable amount of compensation based on an appraisal that will be awarded in the proceeding. If the plaintiff does so, they must have an "expert qualified to express an opinion as to the value of the

property (1) make an appraisal of the property and (2) prepare a written statement of, or summary of the basis for, the appraisal." (Id. at subd. (b).) That statement shall include:

(A) The date of valuation, highest and best use, and applicable zoning of the property.

(B) The principal transactions, reproduction or replacement cost analysis, or capitalization analysis, supporting the appraisal.

(C) If the appraisal includes compensation for damages to the remainder, the compensation for the property and for damages to the remainder separately stated, and the calculations and a narrative explanation supporting the compensation, including any offsetting benefits.

(Ibid.)

Here, Plaintiff deposited a satisfactory amount. First, Plaintiff deposited \$203,000 with the State Treasurer. (Notice of Deposit, May 19, 2026.) Second, Plaintiff complied with the requirements articulated in CCP § 1255.010(b). (Declaration of Tomas A. Ortiz ¶ 8, RJN Exhibit 3 [Summary of Basis for Appraisal].) Glendale Metals predominantly argues insufficiency of the appraisal amount. However, they may move to for an order to redetermine the deposit amount even after a plaintiff takes possession of the property. (CCP § 1255.030(a), (c).) What is more, the court has no authority that this is sufficient to deny Plaintiff's motion for prejudgment possession.

Accordingly, this requirement is met.

iii.

Plaintiff's

Overriding Need for Possession Prior to Judgment and Substantial Hardship

Here, Plaintiff

sufficiently demonstrated overriding need for possession prior to judgment and substantial hardship. First, Plaintiff provided evidence that it needs possession by September 30, 2026 to certify right-of-way to commence construction on time, timely spend state grant funds on the construction

(before June 2027), and to obtain matching Federal funding. (Declaration of Kausi Amuth ¶¶ 5, 6, 7, 10.) Without possession, Plaintiff risks losing significant state and federal funding. (Ibid.)

Additionally, Plaintiff provides evidence of a serious public safety risk which prompted the Project. (Id. at ¶¶ 10, 15.) Plaintiff has therefore demonstrated need for possession prior to judgment and substantial hardship without it.[2]

Accordingly, this requirement is also met.

Balancing of Hardships

Here, the balance of hardships weighs in Plaintiff's favor.

First, Plaintiff's hardships are discussed above. First, Plaintiff's hardships are discussed above. Second, Glendale Metals provided no supporting declaration for their hardships as required by statute. (CCP § 1255.410(c).)

Finally, any economic injuries (financial loss, etc.) will be factored into the consideration of just compensation and are insufficient to show substantial hardship resulting from prejudgment possession.

Accordingly, the balance of hardships weigh in Plaintiff's favor.

Therefore, prejudgment possession is proper.

CONCLUSION:

For the foregoing reasons, the Court decides the pending motion as follows:

Motion for Order for Prejudgment Possession is GRANTED;

Plaintiff is authorized to take possession of the Subject Property thirty (30) days after service of this Order, as required by Code of Civil Procedure Section 1255.450(b).

Moving party is to give notice.

IT IS SO ORDERED.

Dated: September 2, 2026 _____ Upinder
S. Kalra

Judge
of the Superior Court

[1]

The court rejects this argument as unsupported by evidence. (Evid. Code §§ 250, 1401.) Instead, it is dropped into the body of the opposition brief.

[2]

In opposition, Glendale Metals argues that Plaintiff does not have substantial hardship due to unreasonable delay in starting the project. They rely on *Klopping v. City of Whittier* (1972) 8 Cal.3d 39 in support. However, that case is inapposite. *Klopping* concerned inverse condemnation (action brought by the property owner) and stated the condemnee's burden to demonstrate diminution in market value (i.e., damages) based on the public authority's actions. (Id. at p. 52.) There is no discussion on substantial hardship by the public authority. Glendale Metals therefore lacks meaningful opposition to the substantial hardship.